

BC611026 BC611026

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-09-16
Motion: APPLICATION FOR SALE OF DWELLING
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Case Number: BC611026 Hearing Date: September 16, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

DAVID WEI
LIN, et al.,

Plaintiff(s),

vs.

DYUN
SHI,

Defendant(s).

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CASE NO.: BC611026

[TENTATIVE]

ORDER RE: APPLICATION FOR SALE OF DWELLING

Dept.

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8:30

a.m.

September

16, 2026

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Judgment creditors David Wei Lin and

Vicki Weinchi Huang (collectively, "Judgment Creditors") apply for an order to
sell judgment debtor Deyun Shi's right, title, and interest in two properties.

The sale of a

dwelling to satisfy a judgment requires a court order and is governed by Code
of Civil Procedure ("CCP") §§ 704.10-704.850. A hearing must be held to confirm
whether the dwelling is an exempt homestead and to determine the amount of the
exemption and the fair market value of the property. (CCP § 704.780(b).)

At the hearing, the judge must order

the sale of the dwelling, subject to the homestead exemption, unless the judge

determines that the sale proceeds would not be likely to satisfy any part of the amount due on the judgment under CCP § 704.800. (Ibid.)

A judgment

creditor's application for order for sale of the dwelling must be filed within 20 days after receiving notice from the levying officer that the dwelling has been levied. (CCP 704.750(a).)

There is no

notice of levy in the Court's records or attached to Judgment Creditors' application and the Court cannot determine, based on the information before it, whether the application is timely.

Moreover, and perhaps more significant,

the proposed order setting the order to show cause why an order for sale of the dwelling should not be made does not provide for notice of the application to be given to the co-owner of the properties. If the co-owner is, indeed, the defendant-debtor's former spouse, the application should address precisely how the former spouse's interest in the properties is expected to be dealt with upon consummation of the sale(s).

Accordingly, the application is DENIED without prejudice.

Dated this 16th day of September
2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from

the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.